

DISSENTING OPINION BY M. ODA.

[*Translation.*]

Since the compulsory jurisdiction of the Court is not the rule and since Article 26 of the Palestine Mandate constitutes an exceptional clause creating such jurisdiction, that article cannot be interpreted extensively.

According to Article 26, in order that a dispute may be submitted to the Court, the following conditions must be fulfilled : (1) it must be a dispute between a Member of the League of Nations and the Mandatory ; (2) it must be incapable of settlement by negotiation ; and (3) it must relate to the interpretation or the application of the terms of the Mandate.

Of these three conditions, the two first are matters of form and the last of substance.

On the facts as set out by the Parties, it is very difficult definitely to state that the formal conditions have been fulfilled. The dispute, in the first place, was only between the Colonial Office and a private person, and after the intervention of the Greek Government to protect this person, there was only a single exchange of views between the Foreign Office and the Greek Legation in London. Even assuming the formal conditions to be fulfilled, the condition of substance is entirely lacking. The dispute, which relates to the validity of certain concessions and to the vindication of certain rights which, in the contention of the concessionnaire, have been prejudiced, has nothing whatever to do with either the interpretation or the application of the terms of the Mandate.

The history of the preparation of Article 11 of the Mandate shows that for unavoidable reasons the present reservation was substituted for that contained in the original draft which ran "subject to Article 311 of the Treaty of Peace with Turkey" ; it is therefore perfectly reasonable to regard the present version as possessing the same scope—neither more nor less—as the original one. Assuming this to be correct, there is no doubt that the international obligations accepted by Great Britain, referred to in the present version, are those arising out of the special provisions of a convention—such as the Protocol of Lausanne in the present case—and that they are entirely unconnected with the legal relationship created by the Mandate.

The position as Mandatory has no bearing on the conclusions to be drawn from the Protocol, since the relations created by the Mandate, which exist as between the League of Nations and Great Britain only, are not *ipso facto* applicable as between the Powers signatory to the Protocol. The word "Mandatory" in the reservation made in Article 11 is merely used for the sake of convenience in order to keep to the terminology used in other articles of the Mandate. The legal relationship resulting from the Mandate, which only exists as between Members of the League of Nations, must be distinguished from the obligations arising out of the principle of State succession, which may be binding on all States throughout the world, including Members of the League of Nations, quite apart from the obligations arising under the Mandate. It must also be remembered that the Mandatory has to assume certain special and burdensome obligations over and above those arising out of his position as successor State, and that consequently these obligations of the Mandatory do not in any respect extend beyond the limits fixed by the Mandate.

Considered in this light the Protocol of Lausanne is neither a special statute nor a set of rules to be regarded as the complement of the Mandate. Its provisions are entirely distinct and cannot in any sense form part of the terms of the Mandate. It follows therefore that the dispute regarding the concessions granted under the Ottoman Empire has nothing to do either with the interpretation or the application of the terms of the Mandate and is not by its nature within the Court's jurisdiction.

Since the Mandate establishes a special legal relationship, it is natural that the League of Nations, which issued the Mandate, should have rights of supervision as regards the Mandatory. Under the Mandate, in addition to the direct supervision of the Council of the League of Nations (Articles 24 and 25) provision is made for indirect supervision by the Court ; but the latter may only be exercised at the request of a Member of the League of Nations (Article 26). It is therefore to be supposed that an application by such a Member must be made exclusively with a view to the protection of general interests and that it is not admissible for a State simply to substitute itself for a private person in order to assert his private claims. That this is the case is clearly shown by a reference to Article 13 of the Mandate for East Africa, in which Members of the League of Nations are specially authorized to bring

claims on behalf of their nationals. It is impossible to ascertain why this special provision was only inserted in the East African Mandate ; but, as it appears that in all the drafts of "B" Mandates the same provision was inserted, but deleted in the final documents, except in the case of the Mandate for East Africa, it is at all events clear that it was intended to establish a difference between "B" and "A" Mandates to which latter category the Palestine Mandate belongs. The logical conclusion is that an action in support of private interests is excluded under Article 26 of the Mandate now in question, and that, precisely from this standpoint, the Court has no jurisdiction in the case of the Mavrommatis concessions.

(Signed) Y. ODA.
